

DATA CONSENT AGREEMENT

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PREAMBLE.

This Data Consent Agreement is made and entered into on 03 February 2026, by and between the following contracting parties, namely:

(a) upcast_provider, a (please provide citizenship) citizen, holder of passport/ID no. (please provide passport/ID number), residing at 8 John street, London, LO12 3KK, hereinafter referred to, for the sake of brevity, as “Data Provider” or “Data subject” or “Party A”; and

(b) the company/organisation with the name “[EU-CON]” and the distinctive title “CONSUMER”, incorporated in CONSUMER-EU, and having its registered address at General Ramírez de Madrid, 8, Madrid, Madrid 28020, ES, with VAT No. EU987654321, as legally represented at the time of signing of this Agreement by the upcast_consumer, Data of Header, hereinafter referred to, for the sake of brevity, as “Data Consumer” or “Data controller” or “Party B”,

each hereinafter referred to as the “Party” and jointly both of the above the “Parties”, the following have been agreed and mutually accepted:

1. SCOPE OF APPLICATION.

1.1. The Parties have entered into this Data Consent Agreement to provide for the sharing and processing of Data for the Permitted Purpose(s) (as defined below) and to ensure that there are appropriate provisions and arrangements in place to properly safeguard the information shared between the Parties. This Agreement and its Appendices (hereinafter the "Agreement") set out the obligations of the Parties in relation to the processing of data, including the obligations of the Data Consumer's employees or any sub-processors of data.

1.2. The Parties seek to implement a data consent agreement that complies with the requirements of the current data protection legal framework (e.g. the GDPR). Therefore, this Agreement shall apply to any processing of personal data carried out pursuant to the current data protection legislation.

1.3. This Agreement was generated using the UPCAST Contract Service(<https://dips.soton.ac.uk/contract-service-api/docs>) under Consent ID df0Br8bdqKfaMa87Ws3.

1.4. This Agreement includes a human-readable section, which constitutes the legally binding contract between the Parties, and a corresponding Machine-Readable (MR) section, provided in the Appendix A1, to facilitate automated processing and enforcement.

2. DEFINITIONS.

2.1. For the purposes hereof, the terms "personal data", "data subject", "processing", "data controller", "data processor", "third party", "consent", "data breach", "security incident", "supervisory authority", as well as the other terms referred to herein shall have the same meaning as defined in the applicable legislation on personal data protection (including, but not limited to, General Regulation (EU) 2016/679 ("GDPR") etc.).

2.2. The following terms shall have the meanings set out below:

2.2.1. "Data Protection Legislation": means (a) any law, statute, declaration, decree, directive, legislative enactment, order, ordinance, regulation, rule or other binding restriction (as amended, consolidated or re-enacted from time to time) which relates to the protection of individuals with regards to the processing of Personal Data to which a Party is subject, including but not limited to the GDPR, the UK General Data Protection Regulation ("UK GDPR"), and the Data Protection Act 2018 ("DPA"); and (b) any code of practice or guidance published by a Regulatory Body from time to time.

2.2.2. "Pseudonymisation": means the processing of personal data in such a manner that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organisational measures to ensure that the personal data are not attributed to an identified or identifiable natural person.

2.3. The following terms used in the Agreement, and in the Machine-Readable (MR) section of the Appendix A1 shall have the meanings set out below:
(none)

3. PURPOSE OF THE AGREEMENT.

3.1. The purpose of this Agreement is to define the terms and conditions governing the sharing of data between the Data Provider and the Data Consumer. In particular, the Data Provider grants consent for the Data Consumer to process the data, as further detailed herein.

3.2. Data Provider can revoke their consent at any time by sending an email to ..., without prejudice to the legitimacy of the consent-based processing prior to its revocation.

4. DESCRIPTION OF DATA.

4.1. The Data to be processed under this Agreement is described as follows:

4.2. The Machine-Readable (MR) version of the description of data (including its URI, description, format, size, associated tags, and environmental cost metrics) is presented in the Appendix A1.

5. DATA USE – PERMITTED PURPOSES.

5.1. The Shared Data shall be used by the Data Consumer solely for the permitted purpose(s) set out in Clauses 7 and 8.

5.2. No other use is permitted without prior written consent of the Data Provider.

6. GENERAL OBLIGATIONS OF THE PARTIES.

6.1. Data Consumer is obliged to fulfill their obligations hereunder, including the processing of the personal data processed, to comply with the applicable data protection law and to apply the basic principles for the protection of personal data, such as the principles of necessity, relevance, confidentiality, availability and integrity. The processing of personal data will also be carried out in accordance with the decisions of the competent Data Protection Authority, the working party under Article 29 of Directive 95/46/EC and the European Data Protection Board under Article 68 of the GDPR.

6.2. The Data Provider shall ensure that the Data shared is accurate, complete, and up to date.

6.3. The Data Consumer shall not transmit, disclose, tolerate or provide access to the Data to any third party without the prior written consent of the Data Provider, at its sole discretion, unless expressly required to do so under applicable law.

7. POLICIES AND RULES.

7.1. The Parties must comply with the following permission rules:

(none)

7.2. The Machine-Readable (MR) version of policies and rules is presented in the Appendix A1.

8. CUSTOM ARRANGEMENTS.

In addition to the aforementioned (in Clause 7) standard policies, the following custom arrangements are mutually agreed upon by the Parties:

9. DATA PROTECTION.

9.1. Data Consumer must ensure that Data Provider's personal data is kept confidential and that Data Provider exercise their rights of access, correction, deletion, restriction, portability and objection by sending an email to

9.2. Right of correction. The Data Provider is entitled to require Data Consumer without undue delay to correct inaccurate personal data. Having regard to the purposes of the processing, the Data Provider is entitled to require the completion of incomplete personal data, including among others through a supplementary statement.

9.3. Right of deletion. The Data Provider is entitled to ask Data Consumer to delete personal data without undue delay if: (a) the personal data is no longer necessary in relation to the purposes for which it was collected or otherwise processed; (b) the Data Provider has revoked the consent on which the processing is based and there is no other legal basis for the processing; (c) the Data Provider objects to the processing and there are no compelling legitimate grounds for the processing; (d) the personal data have been processed illegally; (e) data must be deleted so that the controller's legal obligation is respected; and (f) personal data has been collected in connection with the provision of services in the information society. Requests for deletion of personal data are processed within one (1) month. If personal data is disclosed, the Data Consumer, taking into account the available technology and implementation costs, shall take reasonable steps, including technical measures, to inform third parties processing such data that the Data Provider has requested the deletion of any links to such data or copies or replications of personal data. The Data Consumer may retain Data Provider's personal information in order to comply with the law, protect their rights, resolve disputes or enforce their agreements.

9.4. Right to restriction of processing. The Data Provider is entitled to obtain from Data Consumer restriction of processing where one of the following applies: (a) the accuracy of the personal data is contested by the data subject, for a period enabling the controller to verify the accuracy of the personal data; (b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests the restriction of their use instead; (c) the controller no longer needs the personal data for the purposes of the processing, but they are required by the data subject for the establishment, exercise or defence of legal claims; (d) the data subject has objected to processing pursuant to Article 21(1) GDPR pending the verification whether the legitimate grounds of the controller override those of the data subject. Where processing has been restricted, such personal data shall, with the exception of storage, only be processed with the data subject's consent or for the establishment, exercise or defence of legal claims or for the protection of the rights of another natural or legal person or for reasons of important public interest of the Union or of a Member State. A data subject who has obtained restriction of processing shall be informed by the controller before the restriction of processing is lifted.

9.5. Right to data portability. The Data Provider is entitled to receive the personal data concerning them, which they have provided to a controller, in a structured, commonly used and machine-readable format and has the right to transmit those data to another controller without hindrance from the controller to which the personal data have been provided, where: (a) the processing is based on consent pursuant to point (a) of Article 6(1) GDPR or point (a) of Article 9(2) GDPR or on a contract pursuant to point (b) of Article 6(1) GDPR; and (b) the processing is carried out by automated means.

9.6. Right to object. The Data Provider is entitled to object, on grounds relating to their particular situation, at any time to processing of personal data concerning them which is based on point (e) or (f) of Article 6(1) GDPR, including profiling based on those provisions. The controller shall no longer process the personal data unless the controller demonstrates compelling legitimate grounds for the processing which override the interests, rights and freedoms of the data subject / Data Provider or for the establishment, exercise or defence of legal claims.

9.7. Data Provider has the right to lodge a complaint with a supervisory authority, in particular in the member state of their habitual residence, place of work or place of the alleged infringement if they consider that the processing of personal data relating to them infringes the General Data Protection Regulation (EU) 2016/679 (GDPR).

10. TECHNICAL AND ORGANISATIONAL SECURITY MEASURES -

DATA SHARING MECHANISMS.

10.1. Data Consumer shall implement and maintain, from the outset and before accessing the Data, appropriate technical and organisational measures, in accordance with current best practice and the state of the art in the relevant sector of activity, taking into account the implementation costs, and the nature, scope, circumstances and purpose of the processing, as well as the different probability of occurrence and the severity of the risk of the rights and freedoms of the persons concerned, in order to protect the Data being processed against accidental or unlawful destruction or accidental loss (including erasure), alteration (including destruction), modification, unauthorised disclosure, use or access and any other unlawful form of processing. Such measures will include, but shall not be limited to the pseudonymisation and encryption of Data, where appropriate; the ability to ensure the ongoing confidentiality, integrity, availability and resilience of processing systems and services on an ongoing basis; the ability to restore the availability and access to the Data in a timely manner in the event of a physical or technical incident, including a Data Breach; a process for regularly testing, assessing and evaluating the effectiveness of the technical and organisational measures in order to ensure the security of the processing of Data.

10.2. In assessing the appropriate level of security, Data Consumer shall take account in particular of the risks that are presented by processing, in particular from a Personal Data Breach (as defined under GDPR).

10.3. Data Consumer agrees to implement and maintain data-sharing mechanisms that: (a) comply with all applicable laws and regulations; and (b) ensure the confidentiality and integrity of data during transmission.

10.4. Data sharing pursuant to this Agreement shall be conducted exclusively through secure communication channels.

10.5. All data transfers must be encrypted during transmission and comprehensively logged.

11. CONFIDENTIALITY.

11.1. Data Consumer agrees to treat all Data shared under this Agreement as confidential.

11.2. Unless otherwise agreed, each Party shall maintain absolute confidentiality with respect to this Agreement, its activities and any information and documentation relating to the other Party (or anyone on its behalf) of which it becomes aware as a result of its cooperation with the other Party.

11.3. The confidentiality and non-disclosure obligations set forth herein shall remain indefinitely, also following the termination and/or expiration of this Agreement and the cooperation of the Parties.

12. LIABILITY.

Each Party shall be fully liable to the other for any act and/or omission by itself and/or any of its employees, agents or assistants and/or any of its subcontractors. The defaulting Party is obliged to compensate its counterparty for any positive and/or consequential damage and/or moral damage that it or a third party (natural or legal person), to which the defaulting party is liable, may suffer from a breach of the obligations arising hereunder by it (i.e. the defaulting party), its employees, agents, assistants and/or any subcontractors.

13. CONTACT.

13.1. With respect to any matter relating to this Agreement, the Parties shall communicate with

each other through the contact persons, addresses, emails and telephone numbers listed in Appendix A2 of this Agreement.

13.2. In the event of a change in the contact details, each Party shall inform the other Party in writing and without delay of the change.

13.3. Any statement or notice sent between the Parties via email, as addressed, shall become effective upon receipt by the recipient. Any notice or communication sent by email shall be deemed received on the next business day following transmission (to the addresses indicated below), provided that no delivery failure notification is received by the sender.

13.4. Notices made by post are deemed to have been delivered within seventy two (72) hours upon being sent, and if delivered by courier- on the date of the actual receipt signed by a representative of the recipient.

14. OTHER PROVISIONS.

14.1. If any term of this Agreement is declared invalid or unenforceable for any reason or cause, the validity of this Agreement shall not be affected, and the remaining terms shall remain in effect as if the invalid or unenforceable term had not been included herein.

14.2. This Agreement may be amended only by new written agreement between the Parties.

14.3. The Parties acknowledge that in the event of any conflict between the provisions of this Agreement and other prior agreements governing the processing of data, the provisions herein shall prevail.

14.4. In the event of any inconsistency between the terms of this Agreement and the Appendices, the provisions of this Agreement shall prevail.

15. DISPUTE RESOLUTION.

The Parties shall endeavour in good faith to resolve amicably any dispute and/or difference arising out of the Agreement and/or the Appendices thereto, which form an undivided and integral part thereof. In the event of failure to resolve any dispute / difference amicably, the courts of the country in which the Data Provider is located shall be exclusively responsible for its resolution.

16. GOVERNING LAW AND JURISDICTION.

16.1. This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and interpreted in accordance with the laws of the country in which the Data Provider is located.

16.2. Each Party irrevocably submits to the exclusive jurisdiction of the courts of the country in which the Data Provider is located over any claim or matter arising under, or in connection with, this Agreement.

17. SIGNATURES.

IN WITNESS WHEREOF, this Agreement has been entered into on the date stated at the beginning of it and should remain in force for 12 months from the Effective Date, unless earlier terminated in accordance with this Agreement.

SIGNED by upcast_provider

Signature

.....

Date

.....

SIGNED by
Duly authorised for and on behalf of ['EU-CON']

Signature

.....

Name

.....

Date

.....

18. Appendix

A1. Machine Readable

1. ODRL Rules

No ODRL rules are defined.

2. Data Resource Description

A2. Communication and Persons in Charge

A2.1 Data Provider

- Full name: upcast_provider
- Email: upcast_provider@example.com
- Phone: 0712345678
- Address: 8 John street, London, LO12 3KK

A2.2 Data Consumer

- Organization: ['EU-CON']
- Contact Person: upcast_consumer
- Role/Title: Data of Header
- Email: upcast_consumer@example.com
- Phone: 0798765432
- Address: General Ramírez de Madrid, 8, Madrid, Madrid 28020, ES